

This agreement (the "Engagement") governs the brokerage in connection with the sale of the property described below by Apartmenthub (the "broker") on behalf of the seller named below (the "principal" or "Seller"). The Engagement has been drafted in line with the Algemene Consumentenvoorwaarden Makelaardij 2018 (NVM/VBO/VastgoedPRO/Vereniging Eigen Huis/Consumentenbond), Book 7 title 7 of the Dutch Civil Code (BW, opdracht and bemiddeling) and the Wwft (Dutch anti money laundering act).

1. Definitions

In this Engagement the following capitalised terms have the meanings set out below, whether used in the singular or the plural:

- Apartmenthub: the broker, having its registered office in Amsterdam, registered with the Dutch Chamber of Commerce under KvK number 74255142.
- Seller: the principal identified in article 3; where there are multiple persons, each Seller is jointly and severally liable.
- Co owner: any natural or legal person who, alongside the Seller, holds rights to the Property.
- Property (Object): the immovable property described in article 5 (a residence, apartment right or erfpacht (long term land lease) right).
- Purchase Price: the price for the Property agreed between Seller and buyer, including any movable items.
- Purchase Agreement: the written sale and purchase agreement to be signed by Seller and buyer.
- Cooling off Period (Bedenktime): the statutory revocation period of fourteen (14) calendar days pursuant to BW art. 6:230o (Dutch Civil Code).
- Annex A: the disclosure duty form completed digitally by Seller that forms an integral part of this Engagement.
- In writing: by letter, by email, or via a signable digital portal; email is treated as in writing within the meaning of BW art. 3:37 paragraph 3.
- Business Day: a day other than a Saturday, Sunday or a generally recognised public holiday in the Netherlands.
- NEN 2580: the Dutch standard for measuring the area and volume of real estate.
- Wwft: the Dutch act on the prevention of money laundering and the financing of terrorism.
- GDPR: the General Data Protection Regulation (EU Regulation 2016/679).
- Additional costs: third party costs as described in article 17, such as photographer, surveyor and stylist.
- Acceptance code: the unique alphanumeric code generated by the portal as proof of digital signing.

2. Broker (the service provider)

Name

Apartmenthub

Office address

Van Baerlestraat 62-2

Phone

+31 6 83221189

BTW (VAT) identification number

NL002403230B63

KvK number

74255142

Postal code and city

1017 PB Amsterdam

Email address

info@apartmenthub.nl

Represented by

David van Wachem

3. Principal (the seller)

Enter your details exactly as they appear on your passport or identity card.

First name(s) as on passport

Street and house number current residential address

Date of birth DD/MM/YYYY

Nationality

Matrimonial property regime community of property / prenuptial agreement / n/a

Phone number incl. country code

Type of ID document passport / ID card / driving licence

Last name family name

Postal code and city e.g. 1017 PB Amsterdam

Place of birth

Marital status unmarried / married / registered partnership / divorced

BSN (Dutch citizen service number, Wwft) citizen service number (9 digits)

Email address

Document number



4. Co owner (if applicable)

In case of community of property or multiple owners, the co owner must also sign this Engagement.

First name(s)

Date of birth

BSN (Dutch citizen service number, Wwft)

Last name

Relation to seller spouse / partner / co owner

ID document number

5. The Property (the immovable property to be sold)

Property address street and house number

Postal code and city

Type of dwelling apartment right / single family home

Year of construction

Living area (sqm)

Ownership situation full ownership / erfpacht (long term leasehold)

Erfpacht end date only in case of erfpacht. DD/MM/YYYY

Canon (EUR/year)

Cadastral identification municipality, section, complex/number, apartment index (e.g. Amsterdam, section K, complex 1234, A-2)

Name of VvE (apartment owners association, if apartment)

KvK number of VvE 8 digits

Known charges and restrictions easements, chain clauses, qualitative rights/obligations, see deed of ownership

At the start of the Engagement the stated surface area will be validated by a surveyor engaged by Apartmenthub in accordance with NEN 2580 (residential usable area, other indoor space, building related outdoor space and external storage). The resulting report prevails over the surface area stated above by Seller and will be included in the sales presentation. For apartment rights, the splitsingsakte (deed of division), splitsingstekening (division drawing) and splitsingsreglement (division rules) are decisive for the description, the boundaries and the voting rights within the VvE. Any chain, qualitative or building rights included in the deed of ownership will be inventoried by Apartmenthub before publication and confirmed to Seller, so that they can be passed on unchanged into the Purchase Agreement.

6. Disclosure duty of the seller (BW art. 7:17, Dutch Civil Code)

Seller discloses all known defects that are material to the buyer (whether visible or hidden). The detailed questionnaire (leakages, damp, wood damage, cracks, foundation, asbestos, soil contamination, official notices, noise nuisance, insurance claims, current warranties and any other hidden defects) is completed digitally and signed at a later step in the sales portal as Annex A to this Engagement. Annex A forms an integral part of this Engagement. Failing to disclose known defects can lead to a claim by the buyer after sale on the basis of BW art. 7:17 (Dutch Civil Code, duty to disclose), a reduction of the Purchase Price, or partial rescission of the Purchase Agreement.

7. Asking price, transfer and special conditions

Asking price (EUR k.k., costs for buyer) e.g. 575,000

Desired transfer date DD/MM/YYYY or by mutual agreement

Conditions kosten koper / k.k. (costs for buyer) / vrij op naam / v.o.n. (costs for seller)

Purchase deed model to be used NVM model / customised model

Particulars / minimum price / indemnities e.g. minimum price no less than 550,000, bid closing date, no financing condition, etc.

The asking price is an invitation to make an offer and does not bind Seller to sell at that price. Any change to the asking price, the bidding method (open dialogue, sealed bidding, bid log) or any reservations will only be made by mutual agreement and in writing. If Seller instructs Apartmenthub not to forward bids below the minimum price, this is recorded above; in that case all bids received will still be logged in the bid log and made available upon request.

8. Services by Apartmenthub

In return for the agreed courtage (broker fee) Apartmenthub provides the following services, in their mutual coherence and throughout the term of the Engagement:

- Intake meeting with advice on asking price, target audience and sales strategy
- Obtaining cadastral search, deed of ownership and extract from the register of restrictions
- Requesting the splitsingsakte (deed of division), splitsingstekening, splitsingsreglement, recent VvE general meeting minutes, annual accounts and MJOP (long term maintenance plan) from the VvE (apartment owners association)
- Gathering public information at Omgevingsloket, City Archive, zoning plan and BAG
- Coordinating measurement in accordance with NEN 2580 by an independent surveyor
- Coordinating an optional valuation if Seller wishes (separate quotation)
- Assessing market value and comparable transactions (reference selection)
- Professional photography, floor plan, video and sales copy for the brochure
- Completing the NVM questionnaire, list of items and Funda listing form
- Publication on Funda, own channels and social media; registration in the NVM home seeker database
- Organising, scheduling and guiding viewings, including feedback collection
- Screening candidate buyers (Wwft light: identity, financial capacity, notable patterns)
- Conducting negotiations on behalf of Seller, with advice on bidding strategy and counter offer
- Maintaining and publishing the transparent bid log (Pararius model) if chosen
- Advice on financing condition, structural survey, transfer date and any deposit
- Drafting or reviewing the Purchase Agreement according to the agreed model
- Final review of NEN compliance, surface area statement and annexes before signing
- Instructing and supporting the choice of notary, and accompaniment up to the notarial transfer
- Ongoing feedback on reactions, viewings and bids to Seller

9. Exclusivity (single broker engagement)

The Engagement is granted on an exclusive basis. During its term Seller will not engage any other broker, intermediary or sales platform for the sale of the Property, and Seller will not carry out any competing sales activities that could obstruct or cut across the performance of this Engagement. If Seller breaches this exclusivity, the full courtage (broker fee) remains payable even if the Purchase Agreement is concluded through a third party. Exclusivity also covers placing advertisements for the Property on marketplaces, social media or auction platforms without prior coordination.

10. Term and termination of the engagement

The Engagement is entered into for a period of THREE (3) months, starting on the day of signing. Upon expiry the Engagement is tacitly renewed for further periods of three months each, unless one of the parties gives written notice by email to info@apartmenthub.nl no later than fourteen (14) days before the end of the current period. Interim termination is possible for both parties subject to a notice period of fourteen (14) days. Upon the death of Seller the Engagement ends, unless the heirs indicate that they wish to maintain it. Upon bankruptcy, suspension of payment or application of the Dutch Natural Persons Debt Restructuring Act to Seller, the Engagement ends automatically with immediate effect.

11. Termination by Apartmenthub

Apartmenthub may unilaterally return the Engagement where there are weighty reasons, including but not limited to: a conflict of interest, a serious breakdown in cooperation, failure or delay by Seller in performing its obligations (article 21), reasonable grounds to suspect that Seller has provided incorrect or incomplete information, or an inability to comply with Wvft obligations (article 19). Apartmenthub confirms the return in writing with reasons. Upon return no courtage is payable, unless article 12 or 16 applies. Additional costs already incurred and agreed in advance remain payable.

12. When is the engagement fulfilled

The Engagement is fulfilled as soon as the Purchase Agreement has been signed by both parties, all conditions precedent have been met and the statutory Cooling off Period (Bedenktijd) and any dissolution conditions have expired. If during the term a Purchase Agreement is concluded with a buyer introduced by Seller or by a third party, the Engagement is equally deemed fulfilled and the full courtage is payable. If, within THREE (3) months after the end of the Engagement, a Purchase Agreement is concluded with a candidate buyer introduced or brought in by Apartmenthub, the full courtage is likewise payable ("protection period"). "Introduced" means: any candidate with whom Apartmenthub has been in written contact during the term, or who has viewed the Property through Apartmenthub.

13. Allocation upon divorce, death or gift

If during the term the Property is allocated in whole or in part to one of the owners, the spouse, the partner or a third party (for example upon divorce, death or gift), the Engagement ends. The courtage is in that case calculated over the value of the allocated share. In a divorce where one partner allocates his or her 50 percent share to the other, courtage is due over 50 percent of the current market value of the Property. Parties may agree other arrangements in writing for the calculation; failing agreement the value is determined by an independent valuer to be appointed by Apartmenthub.

14. Non performance of a concluded purchase agreement

If a Purchase Agreement signed by both parties is not performed, after expiry of any conditions precedent and the statutory Cooling off Period, because one of the parties does not cooperate with the transfer, the full courtage remains payable. Seller can only avoid this by demonstrating that Apartmenthub has attributably fallen short and that as a result the agreement has not been performed. Any deposit forfeited by the buyer, or contractual penalty, accrues to Seller after settlement of the courtage and any notary costs.

15. Broker fee (courtage) (no cure, no pay)

The courtage (broker fee) amounts to ONE PERCENT (1%) of the realised Purchase Price, excluding BTW (VAT). If no Purchase Agreement is concluded, no courtage is payable ("no cure, no pay"). In case of erfpacht (long term land lease) the Purchase Price is: the amount agreed between buyer and Seller increased by ten times the annual canon. In case of newbuild: the purchase price plus the construction sum, including BTW. If BTW is due on the Purchase Price: the amount including BTW. If the transfer is a BTW taxed delivery between businesses (b2b), the courtage is invoiced with reverse charged BTW pursuant to article 12 paragraph 5 of the Dutch Turnover Tax Act. For a business owned property whose use was partly or fully commercial, BTW is separately due over the commercial portion.

The courtage is withheld from the Purchase Price directly at the notarial transfer and paid to Apartmenthub. Where there are several principals (Co owners), each is jointly and severally liable for the full courtage and all additional obligations under this Engagement. Seller may not unilaterally revoke instructions once given to the notary without the prior written consent of Apartmenthub. If a Purchase Agreement is validly rescinded on the basis of a dissolution condition (financing, structural survey) and within three months a new Purchase Agreement is concluded with the same or a related buyer, the full courtage remains payable. In case of executory sale, public auction or private sale within an execution process, the courtage is payable if Apartmenthub introduced the buyer or guided the transaction.

16. Additional costs (paid up front, offset at sale)

Before the sale starts, Apartmenthub engages external parties for at least: measuring the Property in accordance with NEN 2580 (surface area report by a surveyor) and professional photography. Depending on the Property, floor plan, drone shots, video or styling advice may also be used. These start up costs are invoiced to Seller directly upon engagement on the basis of actual costs, and are payable by Seller within fourteen (14) days of the invoice date, regardless of whether the Property is ultimately sold.

Upon a successful sale, the start up costs paid by Seller are offset against the courtage due at the notarial transfer. In addition, costs advanced for public documents (Kadaster deeds approximately EUR 19.85 per deed, KvK extract VvE approximately EUR 2.50) may be passed on at actual cost. Publication on Funda and Apartmenthub channels is included in the courtage. Apartmenthub may engage third parties to carry out this Engagement (photographers, surveyor, stylist, floor plan draftsman, copywriter); their costs fall under the regime described above.

17. Withdrawal costs

Seller may withdraw the Engagement in writing at any time. Apartmenthub charges NO withdrawal costs. Start up costs already incurred (article 16) remain payable and are not refunded. Withdrawal does not affect the operation of article 12 (protection period), article 13 (allocation) and article 14 (non performance).

18. Payment, interest and collection

To the extent payment does not take place through the notary at transfer, Apartmenthub sends a specified invoice with a payment term of fourteen (14) days. In case of late payment, Apartmenthub sends a payment reminder with a cure period of fourteen days. If payment is then still not made, Seller is in default and statutory interest is due from the original due date. From that moment on, extrajudicial collection costs are also due in accordance with the Dutch Decree on Compensation for Extrajudicial Collection Costs (BIK).

19. Wwft identification and sanctions laws

Pursuant to the Wwft (Dutch anti money laundering act) and the Sanctions Act 1977, Apartmenthub is required to carry out a client investigation before and during the performance of this Engagement. This investigation includes at least the following steps, which Seller is obliged to support:

- Identification and verification of Seller and, where applicable, of the ultimate beneficial owner (UBO) of a legal entity.
- Establishing the nature and purpose of the transaction and the source of funds with which the Property was originally acquired.
- Screening against the EU sanctions lists and the National Sanctions List Terrorism of the Ministry of Foreign Affairs.
- Screening whether Seller, a Co owner or the ultimate beneficial owner is a politically exposed person (PEP) within the meaning of art. 1 Wwft.
- Ongoing monitoring during the term: unusual changes, cash deposits or constructions may lead to a report.

If Seller does not cooperate with this investigation, or if a sanctions hit, PEP score or material deviation in the source of funds cannot be satisfactorily resolved, Apartmenthub is entitled to refuse or terminate the Engagement with immediate effect, without being liable for any damages. Where there is a reasonable suspicion of money laundering, terrorism financing or a sanctions violation, Apartmenthub is legally obliged to file a report with FIU Netherlands (article 16 Wwft), without informing Seller ("tipping off" prohibition, article 23 Wwft). Seller indemnifies Apartmenthub against any damage arising from a report made in good faith.

20. Obligations of the seller

Seller provides Apartmenthub with all necessary and correct information and documents, cooperates with identification under the Wwft (article 19), and enables Apartmenthub to comply with its statutory obligations. Seller has a statutory duty to disclose (BW art. 7:17, Dutch Civil Code): all known defects that are material to the buyer must be disclosed (see article 6).

During the term, Seller refrains from activities that could obstruct Apartmenthub in performing the Engagement. Seller does not conduct negotiations directly with candidate buyers and does not conclude a Purchase Agreement outside Apartmenthub (see article 9 on exclusivity). Candidate buyers introduced by or through Seller are passed on to Apartmenthub immediately. Seller cooperates with reasonably requested viewings; in case of cancellation or a no show caused by Seller, the demonstrable costs incurred by Apartmenthub are for the account of Seller.

Changes to the asking price, sales strategy or bidding method will only be implemented after written agreement between Seller and Apartmenthub. Seller informs Apartmenthub without delay of: (a) defects that become known after signing of the Engagement, (b) official notices received from the municipality, VvE, water authority or other government bodies during the term, (c) intended renovations, demolition or changes to the Property, (d) changes in the ownership situation or attachments, and (e) rescission or attempted rescission of a Purchase Agreement already concluded by the buyer.

21. Obligations of Apartmenthub

Apartmenthub performs the Engagement with care, expertise and in the interest of Seller. Apartmenthub has an obligation of effort (not of result) within the meaning of BW art. 7:401 (Dutch Civil Code). Apartmenthub acts as broker and has no authority to enter into binding legal acts on behalf of Seller, unless Seller has given a written power of attorney. Apartmenthub keeps Seller regularly informed of progress and reports back on each viewing and each bid within two Business Days.

Apartmenthub never acts at the same time for both buyer and seller of the same Property and does not accept double courtage. If a conflict of interest arises during the Engagement, Seller is informed immediately and one of the engagements is ended (see article 11). Apartmenthub complies with the statutory requirements regarding its business operations, professional development and complaint handling, and maintains a valid professional liability insurance (see article 23).

22. Representations and warranties of seller

Seller expressly represents and warrants to Apartmenthub that, at the moment of signing of this Engagement and throughout its term:

- (a) Seller is legally capable and authorised to sell and transfer the Property;
- (b) the Property is not subject to attachment, retention right or pledge other than the mortgage disclosed to Apartmenthub;
- (c) there are no pending, threatened or previously initiated proceedings that may affect the sale;
- (d) no third party preference rights, options, purchase or rental rights rest on the Property that have not been disclosed;
- (e) all VvE contributions, reservations for major maintenance and any supplementary payments have been paid on time and in full;
- (f) the erfpacht canon and any indexation have been paid on time and in full, and the erfpacht conditions have been complied with;
- (g) all information, data and documents provided to Apartmenthub are complete, correct and not misleading;
- (h) Seller will inform Apartmenthub without delay of any change that affects any of the above representations.

Breach of one or more of these representations may lead to termination of the Engagement by Apartmenthub (article 11), to liability of Seller for any resulting damage, and to indemnification towards the buyer in accordance with article 26.

23. Professional liability insurance

Apartmenthub has taken out a continuous professional liability insurance with a coverage of at least EUR 1,500,000, on conditions customary in the brokerage profession. An extract of the policy is available to Seller on request. A change of insurer or of the policy conditions does not affect the limitation of liability set out in article 24, provided the coverage level remains equivalent.

24. Liability

The liability of Apartmenthub for damage arising out of or in connection with the performance of this Engagement is limited to the amount paid out in the relevant case by the professional liability insurer of Apartmenthub, increased by the deductible. If for any reason the insurer does not pay out, the liability of Apartmenthub is limited to a maximum of the courtage due or paid in that case, excluding BTW.

Apartmenthub is not liable for: (a) damage caused by incorrect or incomplete information provided by Seller or third parties; (b) acts or omissions of buyer, notary, valuer, mortgage lender, surveyor, photographer or other third parties; (c) consequential loss, loss of profit, reputational damage or immaterial damage; (d) damage as a result of delays in DNS, internet or external portal services (Funda, Kadaster, Omgevingsloket, Pararius). Claims for damages lapse one (1) year after the moment Seller became or could reasonably have become aware of the damage.

25. Force majeure (overmacht)

Force majeure includes, in addition to what is understood in statute and case law: interruptions or failures of IT systems, hosting, email or telephony; failure or non delivery by third parties such as Funda, Kadaster, KvK, Omgevingsloket, notaries, photographers or surveyors; war, threat of war, mobilisation or terrorism; pandemic, epidemic or comparable public health measures; government measures including lockdowns or contact restrictions; strike, occupation or work stoppage; fire, flood, earthquake or extreme weather; and a fundamental disruption of the housing market making performance unreasonable.

During force majeure the mutual obligations under this Engagement are suspended, without either party being liable for damages. Apartmenthub will use its best efforts to inform Seller as soon as possible of the nature, scope and expected duration. If the force majeure situation lasts longer than ninety (90) calendar days, either party is entitled to terminate the Engagement in writing, without any mutual claim for damages. Additional costs already due remain for the account of Seller in that case as well.



26. Indemnity and visual materials

Seller indemnifies Apartmenthub against claims by buyer or third parties relating to open and hidden defects of the Property of which Seller knew or ought to have known, and against claims arising from incorrect or incomplete information provided by Seller or a third party engaged by Seller. Seller grants Apartmenthub the non exclusive, royalty free right to use photos, floor plans, videos and sales copy created in the context of this Engagement, including after the end of the Engagement, for reference, portfolio and marketing purposes of Apartmenthub, provided that no personal data of Seller or buyer is mentioned.

27. Confidentiality

Parties treat all information exchanged between them in the context of this Engagement as strictly confidential. Confidential information includes in any event: financial data, personal data, bids and their amounts, the identity of bidders, negotiation strategy, valuation reports and internal communications. Confidential information is used solely for the purpose for which it was provided and is not shared with third parties, save: (a) where there is a statutory obligation to disclose, (b) where there is a court order, (c) for a Wwft report to FIU Netherlands, and (d) provision to advisers or sub contractors who are themselves bound by comparable confidentiality. The confidentiality obligation remains in force for five (5) years after the end of the Engagement.

28. Privacy and data processing (GDPR)

Apartmenthub processes the personal data of Seller and buyers solely for the purpose of performing this Engagement. The data recorded includes among others: name, contact details, BSN (only for Wwft identification), property data (photo, surface area, asking price, cadastral details), reason for sale and transaction data. Data is only shared with necessary parties (Funda, notary, candidate buyers, third parties engaged by Apartmenthub such as photographers and floor plan draftsmen) and with parties to whom Apartmenthub is required to provide data by statute or court order.

Retention period: seven (7) years for tax purposes, after which data is destroyed. Seller has the right to access, rectification, erasure, restriction of processing, data portability and objection; requests via info@apartmenthub.nl. Complaints can also be filed with the Dutch Data Protection Authority (www.autoriteitpersoonsgegevens.nl). Apartmenthub may, for the purposes of performance, enter into a processor agreement with third parties processing personal data on behalf of Apartmenthub.

29. Statutory cooling off period

If this Engagement is concluded outside the business premises of Apartmenthub or at a distance (by email, telephone or digital signing), Seller, as a consumer, has a statutory Cooling off Period of FOURTEEN (14) calendar days, starting on the day after signing, during which the Engagement can be revoked without giving reasons. Revocation takes place in writing by email to info@apartmenthub.nl, or via the Model Revocation Form set out below. Timely dispatch of the revocation within the period is sufficient to exercise the right of revocation (BW art. 6:230o, Dutch Civil Code).

If Seller expressly requests Apartmenthub to begin performance within the Cooling off Period and subsequently revokes the Engagement within that period, Seller owes Apartmenthub a proportionate share of the work already performed and Additional costs already incurred up to the moment of revocation. This request is recorded explicitly in the sales portal. In case of revocation after a Purchase Agreement has already been concluded, the consequences of article 14 apply in full.

30. Model revocation form (Annex I, Book 6 Dutch Civil Code)

Only complete and return this form if Seller wishes to revoke the Engagement. Send by email to info@apartmenthub.nl, or by post to Apartmenthub, Van Baerlestraat 62-2, 1017 PB Amsterdam.

To: Apartmenthub, Van Baerlestraat 62-2, 1017 PB Amsterdam, email info@apartmenthub.nl. I/We (*) hereby give notice that I/we (*) revoke (*) our agreement concerning the seller brokerage of the immovable property located at [address], with reference [acceptance code]. Ordered on [date] / received on [date] (*). Name of consumer(s): [.....]. Address of consumer(s): [.....]. Signature of consumer(s) (only when this form is submitted on paper): [.....]. Date: [.....]. (*) Delete as appropriate.

31. Complaints

Complaints are handled in two phases. Phase 1: Seller first reports the complaint in writing to Apartmenthub via info@apartmenthub.nl, with a clear description and substantiation. Apartmenthub confirms receipt within two (2) Business Days and will use its best efforts to propose a suitable solution within two (2) weeks. Phase 2: if the solution does not lead to agreement, Seller may submit the dispute within twelve (12) months of the first notification to the Geschillencommissie Makelaardij in accordance with article 32. Filing a complaint does not relieve Seller of its payment obligations for the undisputed part of the invoice.

32. Disputes and applicable law

Dutch law applies exclusively to this Engagement. If a complaint (article 31) does not lead to a solution, Seller may submit the dispute within 12 months of filing the complaint to the Geschillencommissie Makelaardij (Bordewijklaan 46, The Hague, www.degeschillencommissie.nl). For disputes regarding liability for damages the Geschillencommissie has jurisdiction up to damages of EUR 10,000. Seller may also choose the competent court in Amsterdam. Apartmenthub, when bringing its own claim, always chooses the competent court in Amsterdam.

33. Assignment of rights and obligations

Neither party is entitled to transfer its rights or obligations under this Engagement in whole or in part to a third party, or to have a third party take its place by contract takeover within the meaning of BW art. 6:159 (Dutch Civil Code), without the prior written consent of the other party. Consent will not be unreasonably withheld. Apartmenthub is entitled to engage sub contractors for the performance of this Engagement in accordance with article 16, without requiring the prior consent of Seller.

34. Notifications and communications

All formal notifications between parties take place in writing by email. Apartmenthub is reachable at verkoper@apartmenthub.nl (case related) and info@apartmenthub.nl (formal notifications, termination, complaints). Seller is reachable at the email address given in article 3. Email is treated as in writing within the meaning of BW art. 3:37 paragraph 3 in conjunction with art. 6:227b. A notification is deemed received 24 hours after dispatch, unless the sender has received a non delivery or bounce message within that period, in which case the notification is to be repeated without delay by other means (post or telephone).

35. Survival after termination

Termination of this Engagement does not affect the operation of provisions that, by their nature, are intended to remain in force after termination. Expressly remaining in force after termination are: article 12 (protection period and courtage), article 14 (non performance), article 15 (courtage), article 16 (Additional costs), article 24 (liability), article 26 (indemnity and visual materials), article 27 (confidentiality), article 28 (GDPR), article 32 (disputes) and article 33 (assignment of rights).

36. Entire agreement and other provisions

This Engagement, together with Annex A (Disclosure duty), Annex B (List of items) and Annex C (Model Revocation Form), forms the entire agreement between parties and supersedes all earlier oral or written communications, offers, quotations and arrangements regarding the same subject. Amendments or additions are only valid if agreed in writing and signed by both parties. If a provision turns out to be void or voidable, the remaining provisions remain in full force; parties will replace the provision with a valid provision that approximates as closely as possible the purpose and scope of the original provision.

37. Annexes

The following annexes are an inseparable part of this Engagement. Their substantive texts are generated by separate scripts and/or the sales portal and are initialised by Seller separately:

- Annex A Disclosure duty of seller (to be supplemented digitally by Seller at a later step)
- Annex B List of items (to be supplemented digitally by Seller at a later step)
- Annex C Model Revocation Form (cooling off period) (see also article 30)

38. Documents to be supplied by seller

Seller provides the following documents at or after signing (insofar as available):

- Copy of valid ID of Seller (and Co owner)
- Deed of ownership / transfer deed (otherwise obtained by Apartmenthub via Kadaster)
- For apartment rights: splitsingsakte (deed of division) + drawing, recent VvE general meeting minutes, VvE annual accounts + budget, MJOP (long term maintenance plan), building insurance policy, KvK extract VvE
- Mortgage details (pro forma redemption statement), only if a mortgage exists
- Erfpacht documents, only in case of erfpacht (Amsterdam: via DigiD erfpacht file)
- Energy label, if available (otherwise requested by Apartmenthub via EP online)
- List of items (Apartmenthub provides the template)
- Any warranty certificates, asbestos inventory, foundation survey, building drawings

39. Digital signing

This Engagement is accepted digitally via the Apartmenthub sales portal at apartmenthub.nl/verkoop. By confirming via the accept button on the portal, Seller declares to have read, understood and accepted this Engagement, including all articles and annexes, without reservation. The digital acceptance has the same legal validity as a handwritten signature (BW art. 3:15a, Dutch Civil Code). After acceptance, Seller receives this Engagement by email, with name, date, time and a unique Acceptance code as proof of signing. A copy is kept by Apartmenthub in accordance with the retention period set out in article 28.

Accepted by (seller name) filled in automatically after signing

Date and time of acceptance filled in automatically

Acceptance code unique number per engagement

IP address at acceptance filled in automatically